

Chaturi Gupta v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 21 January 2019 · WRIT - C No. - 1774 of 2019 · **Writ disposed; Executive Engineer to decide Clause 6.8 representation; recovery stayed pending that decision.**

HEADNOTE

A writ seeking quashing of a recovery certificate for alleged unauthorized use of electricity was disposed of without merits adjudication. The petitioner already having a representation before the Executive Engineer, that officer was directed under Clause 6.8 of the Electricity Supply Code, 2005 to hear and decide it in accordance with law; recovery under the 15 December 2018 certificate to remain in abeyance subject to the officer's final order.

FACTUAL SUMMARY

Chaturi Gupta sought quashing of a recovery certificate dated 15 December 2018 for Rs. 1,13,149 towards electricity dues. The allegation was that inspection had found him using electricity unauthorizedly. He had already submitted a representation dated 13 July 2018 to the Executive Engineer, Purvanchal Vidyut Vitran Nigam Limited, Mau, placed on record as Annexure 3. The High Court noted that Clause 6.8 of the Electricity Supply Code, 2005 afforded a remedy before that officer.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.8

unauthorized-use-representation

HOLDING

A consumer challenging recovery of electricity dues for alleged unauthorized use has a remedy under Clause 6.8 of the Electricity Supply Code, 2005 before the Executive Engineer. Where a representation is already pending, the writ court will not keep the petition pending or decide the claim on merits; the officer shall afford a personal hearing and decide the representation in accordance with law, and recovery under the impugned certificate shall remain in abeyance subject to that decision. ¶ 1

PRINCIPLE TAGS

opportunity-before-final-assessment A writ seeking quashing of a recovery certificate for alleged unauthorized use of electricity was disposed of without merits adjudication.. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE PETITIONER USED ELECTRICITY UNAUTHORIZEDLY AND WHETHER THE RECOVERY OF RS. 1,13,149 UNDER THE CERTIFICATE DATED 15.12.2018 WAS VALID.

The Court expressly recorded that it had not adjudicated the petitioner's claim on merits, leaving the representation to the Executive Engineer under Clause 6.8. ¶ 1